

State of Alaska – Office of the Governor — 34th Alaska State Legislature – Second Session
DEPARTMENT REVIEW – PASSED LEGISLATION

BLUE SHEET

Blue Sheets are a department's final bill analysis and provides the Commissioner an opportunity to weigh in on legislation that has passed, with a recommendation to the Governor on action that may be taken– to enact the bill, to veto the bill, or to allow the bill to become Law without signature (LWOS). Much of the information requested in the Blue Sheet can be taken from the department's bill analyses (BA), which were initially submitted at the time the bill was introduced and updated throughout the legislative process.

Blue sheets are due to the GLO three days after the enrolled bill appears on basis, or sooner by request.

Department: DOH

Date: 5/15/2026

Bill Number: HB52

Short Title (as it appears on BASIS): Minors & Psychiatric Hospitals

What action do you recommend the Governor take?

Select one.

☐ SIGN ☒ VETO ☐ LWOS

Action Justification – Why do you recommend the above action?

HB 52 is an unnecessary expansion of regulatory oversight on psychiatric hospitals. Psychiatric hospitals are already strictly regulated under the Joint Commission and the additional inspections under HB 52 are duplicative.

What does this Bill do?

HB52

- establishes minor patient rights to confidential communication, 2 cumulative hours per week, with a parent or legal guardian approved by the professional in charge;
- requires the Department of Health to publish an annual report that includes aggregate data on the use of restraint and seclusion, including type(s) of psychotropic medications used, if any, for purposes of chemical restraint; a summary of inspection findings, and census data to be collected by the Department of Family and Community Services on Family and Community Services;
- requires the Department of Health to conduct at least two unannounced inspections annually of psychiatric hospitals where minors have stayed for more than three nights in

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- the preceding year and conduct interviews with at least 50% of the minor patients;
- requires a hospital to notify, within 72 hours, the Department of Health, in writing, and the minor’s parent or guardian, each time physical or chemical restraint is used; if chemical restraint is used, notification must include the type of psychotropic drug used;
- defines chemical restraint as “*a medication that is used to control the behavior or restrict the freedom of movement of a patient [and] does not include the ongoing use of a medication for the treatment of symptoms of an underlying psychiatric illness*”; and
- establishes a July 1, 2027, effective date.

Detailed Sectional Analysis

Section 1:

Amends AS 47.30 to establish that, with some exceptions, a minor undergoing evaluation or inpatient treatment in a psychiatric hospital has the right to two cumulative hours, weekly, of confidential telephone or video communication with their parent, legal guardian, or an adult approved by the professional in charge. Exceptions to this right include legal or court-ordered restrictions or if deemed therapeutically unadvisable by the professional in charge. The hospital is required to facilitate the patient’s communication.

Section 2:

Amends AS 47.32.030 to include a new subsection that requires the Department of Health to publish, online, an annual report by November 1 each year, submit the report to the senate secretary and chief clerk of the house of representatives, and notify the legislature when the report is available. The report must:

- include the aggregate totals of the numbers of uses of seclusion and restraint by each psychiatric hospital in which minors are evaluated or receive inpatient therapy, and the type of psychotropic medication used, if applicable, to carry out chemical restraint;
- summarize the department’s findings from inspections carried out under AS 47.32.110(d); and
- include data on the number of minors who received residential care at psychiatric hospitals, including information provided by the Department of Family and Community Services under AS 47.32.030(f).

Amends AS 47.32.030 to include a new subsection (f) that requires the Department of Family and Community Services to

- collect data on the number of minors who receive residential care in psychiatric hospitals in Alaska, the number of minor Alaskans in state custody who received out-of-state psychiatric hospital residential care, and the amount of time those minors spent in each of those settings; and

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- provide this collected data to the Department of Health for inclusion in a required annual report.

Section 3:

Amends AS 47.32.110(c), allowing the Department of Health or its agents to petition for court orders to conduct inspections.

Section 4:

Adds a new subsection to AS 47.32.110, requiring the Department of Health to conduct at least two unannounced inspections annually of psychiatric hospitals where minors have stayed for more than three nights in the preceding year, and conduct interviews with at least 50% of the minor patients during inspections; the interviews must occur without hospital staff present, unless requested by the department for safety purposes.

Section 5:

Amends AS 47.32.200 by adding subsection that requires a psychiatric hospital to notify the Department of Health, in writing, and notify the minor's parent, within 72 hours of each instance in which seclusion or restraint, including chemical, mechanical, or physical restraint, is used on a minor. and must include the type of psychotropic medication used, if applicable.

Section 6:

Defines chemical restraint to mean "*medication that is used to control the behavior or to restrict the freedom of movement of a patient,*" and that chemical restraint "*does not include the ongoing use of a medication for the treatment of symptoms of an underlying psychiatric illness.*"

Section 7:

Establishes that the Act take effect on July 1, 2027.

Companion or Similar Bills

SB 44 by Senator Claman

Support/Opposition of the Bill

Letters and emails of support were received by the legislature from the Alaska Federation of Natives/Benjamin Mallott, president; Lives in the Balance/Ben Jones; Dot Lake Village/Tracy Charles-Smith, president; the Citizens Commission on Human Rights/Steven Pearce, director; Aleutian Pribilof Islands Association/Dimitri Philemonof, president and CEO; Disability Law Center of Alaska/Kathleen Myers; and Susan Allmeroth.

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Bill Signing ceremony suggestions (if applicable)

Commissioner's Signature: Heidi Hedberg Date: 5/17/2026

I have reviewed the above information and provided it to the Governor's Legislative Office for consideration of an action by the Governor on legislation passed during the second session of the 34th Alaska State Legislature.

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